

The Newspaper (Price And Page) Act, 1956

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Union of India - Act

The Newspaper (Price And Page) Act, 1956

UNION OF INDIA

India

The Newspaper (Price And Page) Act, 1956

Act 45 of 1956

Published on 7 September 1956

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The Newspaper (Price And Page) Act, 1956

(45 OF 1956)

18.

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Statement of Objects and Reasons.-The regulation of the prices of newspapers in relation to their sizes appeared to be a necessity to the Press Commission mainly in order to provide the circumstances in which freedom of opinion could be very much more real than it is today by eliminating unfair competition and equalising opportunities for newspapers especially with smaller resources. Accordingly, one of the major recommendations of the Press Commission was that legislation be enacted empowering Government to issue from time to time a price-page schedule fixing a minimum price at which papers of a particular size can be sold. The Commission also recommended that in order to ensure that the reader gets an adequate proportion of news and views and that the advertisements are not reduced in effectiveness

because there are too many of them, the total space allotted to advertisements in newspapers should be restricted to a specified proportion. The consensus of opinion in the Press industry is in favour of these recommendations and there has been a general demand for their implementation. In the course of the debate on the Press Commission's Report general approval was expressed by Parliament to the principles underlying these recommendations. The Bill seeks to implement the recommendations by conferring powers suitably for the purpose.

The scope of the Bill is restricted to newspapers which appear at intervals of not more than a week. Clause 3 of the Bill empowers Government to issue a price-page schedule from time to time by making an order providing for the regulation of the prices charged for newspapers in relation to their maximum or minimum number of pages, sizes or areas and for the space to be allotted for advertising matter in relation to other matters. It is enjoined that such order shall be made with due regard to the need for reasonable flexibility with reference to the fall of news, the flow of advertisements and other matters connected with the normal working of newspapers. Similarly, provision has been made for the schedule to be drawn up in consultation with the interests concerned. The other provisions of the Bill mainly relate to procedure.

[7th September, 1956]

An Act to provide for the regulation of the prices charged for newspapers in relation to their pages and of matters connected therewith for the purpose of preventing unfair competition among newspapers so that newspapers may have fuller opportunities of freedom of expression.

Be it enacted by Parliament in the Seventh Year of the Republic of India as follows:-

1.

Short title, extent and duration .-(1) This Act may be called The Newspaper (Price and Page) Act, 1956.

(2)

It extends to the whole of India except the State of Jammu and Kashmir.

[* * *]

2.

Definitions .-In this Act, unless the context otherwise requires,-

(a)

"daily newspaper" means a newspaper which is published on not less than six days in a week, and includes any supplement or special edition of such newspaper;

(b)

"newspaper" means any printed periodical work containing public news or comments on public news appearing at intervals of not more than a week.

3.

Power to regulate prices and pages of newspapers, etc .-(1) If the Central Government is of opinion that for the purpose of preventing unfair competition among newspapers so that newspapers generally and in particular, newspapers with smaller resources and those published in Indian languages may have fuller opportunities of freedom of expression, it is necessary or expedient so to do, the Central Government may, from time to time, by notification in the Official Gazette, make an [order]

providing for the regulation of the prices charged for newspapers in relation to their maximum or minimum number of pages, sizes or areas and for the space to be allotted for advertising matter in relation to other matters therein.

(2)

An order under this section-

(a)

may be made in relation to newspapers generally or in relation to any class of newspapers;

(b)

may contain different provisions for daily newspapers and newspapers appearing at other periodical intervals and for different classes of newspapers, and may, in particular, make separate provisions for weekly editions of daily newspapers whether appearing under the same title or not, and also for supplements or special editions of newspapers issued on special occasions;

(c)

shall be made relatable to such period of time as the Central Government may deem reasonable;

(d)

may provide for incidental or supplementary matters.

(3)

An order under this section shall be made with due regard to the need for reasonable flexibility with reference to the fall of news, the flow of advertisements and other matters connected with the normal working of newspapers.

(4)

Before making any order under this section, the Central Government shall consult associations of publishers, and such publishers likely to be affected by the order as it may think fit with respect to the action proposed to be taken.

4.

Prohibition of publication and sale of newspapers in contravention of order under section 3.-No newspaper shall be published or sold in the territories to which this Act extends in contravention of any of the provisions of an order made under section 3.

5.

Returns to be furnished by newspapers .-For the purpose of verifying whether an order made under section 3 is being complied with or not, the Press Registrar appointed under the Press and Registration of Books Act, 1867 (25 of 1867), may, from time to time, direct the publisher of any newspaper to which such an order applies to furnish to him such weekly returns and statistics with respect to any of the particulars referred to in section 3 as the Press Registrar may, from time to time, require and the publisher of every newspaper shall comply with such direction.

6.

Penalties .-(1) If any newspaper is published or sold in contravention of section 4, the publisher of the newspaper shall, on first conviction, be punishable with fine which may extend to one thousand rupees and on any second or subsequent conviction, with fine which may extend to two thousand rupees.

(2)

If the publisher of any newspaper-

(a)

refuses or neglects to comply with any direction of the Press Registrar given under section 5; or

(b)

furnishes or causes to be furnished to the Press Registrar any weekly returns or statistics which he has reason to believe to be false, he shall be punishable with fine which may extend to five hundred rupees.

7.

[Cognizance of offences

.-No Court shall take cognizance of any offence punishable under this Act except upon a complaint in writing by the Press Registrar appointed under the Press and Registration of Books Act, 1867 (25 of 1867), or by any officer authorised by him in writing in this behalf.

Sl.No

Name of notary

Residential and professional address

Qualifications

Area in which he is authorized to practice

Remarks

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